DAVIE POLICE DEPARTMENT

501

AUTOMATED LICENSE PLATE RECOGNITION (ALPR) SYSTEMS

Revised: August 30, 2023
Effective: September 6, 2023

Approved: Stephen Kinsey, Chief of Police

I. PURPOSE:

The purpose of this general order is to provide the agency with guidelines on the proper use of Automated License Plate Recognition (ALPR) systems, also known as license plate reader systems. ALPR systems assist in the detection, identification, and recovery of stolen vehicles, wanted persons, missing and/or endangered persons, and persons who have committed serious and/or violent crimes. **[32.04]**

II. POLICY:

The availability and use of automated license plate recognition systems have provided many opportunities for the enhancement of productivity, effectiveness, and officer safety. It is the policy of the Davie Police Department that all members abide by the guidelines set forth herein when using ALPR systems.

III. DEFINITIONS:

A. ***ALPR Alert*** – An audible or visual alarm received when the ALPR system receives a potential "hit" on a license plate.

B. ***ALPR Administrator*** – Division Commander designated by the Chief of Police or designee responsible for the management, operation, and maintenance of all ALPR systems.

C. ***ALPR Operator*** – Department member who has been authorized and trained in the operation and lawful use of ALPR systems.

D. ***ALPR System*** – A system of one or more mobile, portable, or fixed high-speed cameras combined with computer algorithms to convert images of license plates into computer-readable data.

E. ***FCIC*** – (Florida Criminal Information System); Law enforcement database maintained by the Florida Department of Law Enforcement. Queries to the database are for law enforcement purposes to search for entries of criminal history records, missing/wanted persons, and stolen/missing items from the state of Florida.

F. ***Fixed ALPR System*** – ALPR equipment that is permanently affixed to a structure, such as a pole, sign, or other fixed object.

G. ***Hit*** –An ALPR Alert that matches a vehicle tag that has previously been registered on an agency's "Hot List".

H. ***Hot List*** – Files extracted from sources of license plate information containing stolen vehicles, stolen license plates, vehicles associated with wanted or missing persons, and any vehicles associated with AMBER, SILVER, PURPLE, and BLUE Alerts. Hot List information can come from a variety of sources, including the National Insurance Crime Bureau (NICB), the National Crime Information Center (NCIC), the Florida Crime Information Center (FCIC), the Department of Highway Safety and Motor Vehicles (DHSMV), and/or the Department of Homeland Security (DHS) watch lists. Manual additions to the local Hot List can also be made for license plates associated with lawful investigations.

I. ***Mobile ALPR System*** – ALPR equipment that is affixed, either permanently (hardwired) or temporarily (e.g. magnet-mounted), to a department vehicle for mobile deployment.

J. ***NCIC*** – (National Crime Information Center); Law enforcement database maintained by the Federal Bureau of Investigation (FBI). Queries to the database are for law enforcement purposes to search for entries of criminal history records, missing/wanted persons, and stolen/missing items nationwide.

K. ***Personal Identifiable Information*** **(PII)-** Information that can be used to distinguish or trace an individual's identity, either alone or when combined with personal or identifying information linked or linkable to a specific individual. PII includes names, gender, race, dates of birth, photographs, addresses, social security numbers, driver's license numbers, or biometric data.

L. ***Portable ALPR System*** **-** ALPR equipment that is easily transportable and can be deployed in a variety of venues as needed (e.g. speed trailer or message boards)

M. ***Read*** – Digital images of license plates, vehicles, and associated metadata (e.g. date, time, and geographic coordinates associated with the vehicle image capture) that are captured by the ALPR system.

IV. PROCEDURES:

A. SYSTEM MANAGEMENT

1. All department members designated to operate and maintain ALPR system equipment shall periodically check equipment to ensure functionality and camera alignment. Any equipment that is not functioning as expected shall be removed from service until the issues are corrected.

2. The ALPR system utilizes teletype information and thus, is restricted to those uses that are authorized by the Florida Department of Law Enforcement (FDLE) rules and regulations regarding the use of teletype and ALPR systems.

3. ALPR systems, their associated equipment, and databases are authorized for official law enforcement purposes only. The misuse of ALPR equipment, associated databases, and the data contained therein, will be subject to disciplinary action.

4. No components of the ALPR system, whether permanently installed at a fixed location, in a vehicle, or as part of a portable ALPR system, will be removed, altered, or transferred without first receiving authorization from ALPR Administrator or designee.

B. SYSTEM TRAINING **[32.04A]**

1. Prior to using the ALPR system, department members will complete agency-approved training based on the manufacturer's recommendations and department policies. Training will be documented and include at a minimum:

   a. Proper use guidelines;

   b. Legal issues involved with the use of the ALPR; and

   c. Setup and maintenance procedures for ALPR system equipment.

2. Only department members who have been approved and properly trained in the use and operational procedures of the ALPR system shall be permitted to use or access stored ALPR data.

C. GENERAL USE GUIDELINES **[32.04B]**

1. An ALPR system may be used only to scan vehicle license plates in public view (i.e. plates of vehicles traveling or parked on any street or highway or other public property, or visible from a place or location at which a law enforcement officer is lawfully present.)

2. The camera passively reads the license plates of moving or parked motor vehicles using ALPR optical character recognition technology and compares them against one or more Hot Lists. The ALPR system does not directly query FCIC/NCIC records.

3. Manual additions to the local Hot List can also be made for license plates associated with lawful investigations. All manual additions must be approved by a supervisor, and entered by designated ALPR Operators within the Communications Unit or Criminal Investigations Division.

4. ALPR System Alerts

   a. ALPR alerts or "hits" are indicated by an audible and/or visual alarm received through system software or web interface on department computers.

   b. Once the "hit" is received, the ALPR Operator shall verify that the system has correctly captured the license plate characters, including the verification of the state of issuance.

   c. A "hit" by an ALPR system is NOT probable cause to conduct a stop of the vehicle. FCIC/NCIC verification via department computer, Communications Unit, or Broward County Regional Communications Center, must be made by the officer prior to any contact with the vehicle in question unless the officer conducting the traffic stop witnesses a traffic infraction prior to FCIC/NCIC verification.

5. Safeguards shall be taken to avoid the viewing of sensitive or confidential data by unauthorized persons who may be in a position to view the screen while in a public place or in the vehicle, in accordance with the FDLE rules and regulations regarding the use of teletype systems.

D. FIXED ALPR SYSTEM GUIDELINES

1. Communications Unit personnel will be trained as ALPR Operators, and are authorized to monitor designated fixed ALPR systems.

2. Upon notification of an ALPR alert or "hit" and if workload permits, the dispatcher will first verify that the system has correctly captured the license plate characters and then verify the "hit" through FCIC/NCIC. Once verified, the dispatcher will immediately notify on-duty personnel, via radio BOLO, which will include the following information:

   a. Camera location;

   b. Direction of travel;

   c. Plate number;

   d. Vehicle description; and

   e. Alert or "hit" type (stolen vehicle, stolen tag, etc.).

E. MOBILE ALPR SYSTEM GUIDELINES

1. The safe operation of the department vehicle is the member's primary responsibility. Use of the ALPR system is always of secondary importance, and the member should consider the need to safely stop the vehicle before using the system if the use is going to divert the member's attention from the safe operation of the vehicle. No portion of this policy is intended to prohibit or limit the member from making safety-conscious decisions.

2. ALPR equipment will be inspected prior to use to ensure that the cameras are properly affixed and operating as designed. Any damage to the ALPR camera or supporting equipment will be reported to the ALPR Administrator or designee.

3. At the beginning of each shift, ALPR Operators must ensure that the ALPR system has been updated with the most current Hot Lists available.

F. PORTABLE ALPR SYSTEM GUIDELINES

1. The Traffic Unit supervisor or designee is responsible for the general or periodic maintenance of the portable systems (e.g. speed trailers or message boards), including trailer maintenance, battery maintenance, or speed measurement/message board hardware maintenance, that have ALPR hardware installed within.

2. Requests for the placement or deployment of portable ALPR systems will be routed to the Traffic Unit supervisor via the chain of command.

G. DATA COLLECTION, ACCESS, USE, RETENTION, AND AUDIT

1. Collection: ALPR data will be collected as a by-product of the active scanning of license plates that are compared with the downloaded Hot List, searched as part of a criminal investigation, or in furtherance of a criminal justice purpose. This data is collected by both mobile and fixed ALPR cameras in the same manner. The data is stored in the ALPR system's database. The ALPR database contains the image of the license plate, the optical character recognition rendition of the license plate number, and the date/time and location of the capture. ALPR data will be stored, purged, destroyed, or deleted in accordance with Florida Statute 316.0778. **[32.04C, D]**

2. Access and Use: ALPR data will be available to authorized department members for the tactical enforcement of state statutes, for example, identification of a stolen vehicle. ALPR data will be available to department personnel for the purposes of conducting ongoing or continuing criminal investigations and for the purposes of active criminal intelligence operations.

3. Information Sharing: ALPR data captured and stored may be shared with other Criminal Justice Agencies for the purposes of conducting ongoing or continuing criminal investigations and for the purposes of active criminal intelligence operations. Agencies shall record the dissemination of ALPR data and notify the recipient of the applicable Florida statutes regarding the privacy restrictions and retention schedules for ALPR data. Information sharing among agencies shall be dictated in accordance with any active Memorandum of Understanding (MOU) or established department policies and procedures. **[32.04C]**

4. Security: ALPR systems do not perform secondary capture of PII or CJI and do not need to conform to the FBI CJIS Security Policy (CSP). ALPR systems will provide user-level access based on the role of the person accessing the system (i.e. criminal investigation or criminal intelligence) to ensure the integrity of the systems and confidentiality of the data. ALPR systems shall be sufficiently designed to minimize the compromise, unauthorized access or use, destruction, modification, or unintended or inappropriate disclosure of data.

5. Data Retention: ALPR data shall be retained in accordance with Florida Statute 316.0778. ALPR data that are part of an ongoing or continuing investigation and information that is gathered and retained without specific suspicion may be retained for no longer than 3 anniversary years. Data captured, stored, generated, or otherwise produced shall be accessible in the ALPR system for 30 days for tactical use. Public records requests for ALPR data will be handled in accordance with existing departmental procedures pursuant to Florida State statutes. **[32.04D]**

6. Audit: The ALPR Administrator will conduct an audit to include all access to data captured, stored, generated, or otherwise produced by the ALPR to ensure that only authorized users are accessing the ALPR data.